

1.

CASE #	CASE NAME	HEARING NAME
CVRI2500446	TODD vs VEVOR STORE, LLC	HEARING RE: PRESERVE EVIDENCE

Tentative Ruling:

Hearing is vacated as moot, pursuant to 9/17/26 declaration of Defendants' counsel, James Henry.

2.

CASE #	CASE NAME	HEARING NAME
CVRI2603400	TORRES vs AMERICAN FAMILY CONNECT PROPERTY AND CASUALTY INSURANCE COMPANY	DEMURRER ON COMPLAINT
CVRI2603400	TORRES vs AMERICAN FAMILY CONNECT PROPERTY AND CASUALTY INSURANCE COMPANY	MOTION TO STRIKE COMPLAINT

Tentative Ruling:

Hearing is vacated and continued to 11/23/26. Defendant American Family Connect Property and Casualty Insurance Company is ORDERED to satisfy its statutory obligation to meet and confer in person or by telephone with counsel for Plaintiffs pursuant to California Code of Civil Procedure section 430.41, subdivision (a) prior to any further hearing on the Demurrer.

(Court Notes: Electronic service on opposing counsel appears to be inconsistent with court records.)

Before filing a demurrer, the demurring party must meet and confer in person or by telephone with the party who filed the pleading subject to demurrer for the purpose of determining whether an agreement can be reached that would resolve the objections raised in the demurrer. Unilateral written correspondence, demands, or emails do not satisfy this statutory requirement. Civ. Proc. Code, § 430.41(a).

As part of the meet-and-confer process, the demurring party must identify all specific causes of action subject to demurrer and identify with legal support the basis of the alleged deficiencies. Civ. Proc. Code, § 430.41(a)(1). The responding party must provide legal support for its position that the pleading is legally sufficient or, in the alternative, explain how the pleading could be amended to cure any legal insufficiency.

In support of its Demurrer, Defendant submitted the Declaration of Paul Eum regarding meet and confer efforts. The Declaration of Paul Eum shows that on July 16, 2026, counsel sent a written meet-and-confer letter via email to Plaintiffs' counsel (PLG Damage Attorneys) outlining perceived pleading defects (Declaration of Paul Eum, ¶ 6, Ex. A). The declaration further states that on August 6, 2026, staff member Chelsea Fongemie sent a follow-up email proposing potential conference dates (Declaration of Paul Eum, ¶ 7, Ex. B). Nowhere in the Declaration of Paul Eum does counsel state or demonstrate that the parties actually held or participated in an interactive conference in person or by telephone prior to filing the Demurrer on August 17, 2026. Sending written letters or emails does not satisfy California Code of Civil Procedure section 430.41, subdivision (a), which mandates a live, interactive dialogue in person or by telephone. (Code Civ. Proc., § 430.41(a). Counsel cannot fulfill the statutory meet-and-confer mandate by transmitting written correspondence and asserting that the burden thereafter shifted to opposing counsel to respond. Unilateral email demands (such as the July 16, 2026 letter and August 6, 2026 email) fail as a matter of law to satisfy the requirement to meet and confer under California Code of Civil Procedure section 430.41, subdivision (a)(3).

At least 10 calendar days prior to the continued hearing date, Defendant SHALL file and serve one of the following three items:

1. Notice of Vacating Hearing: A formal notice vacating the hearing on the Demurrer
OR
2. Declaration of Agreement to Amend: A declaration under penalty of perjury stating that the parties met and conferred and agreed that Plaintiffs will file an amended complaint on or before a specified date prior to the hearing
OR
3. Declaration of Detailed Meet and Confer: A declaration under penalty of perjury stating the exact means by which the parties met and conferred (including dates, times, and participants of the telephonic or in-person conference), the specific legal and factual issues discussed, and the precise objections in the Demurrer that the parties were unable to resolve.

The Court will not accept further briefing regarding the pending Demurrer.